

Dr. Rizwan Iqbal. Vs. Federation of Pakistan, etc.

21.04.2026.

Muhammad Asghar and Faisal Awais, departmental representatives on behalf of NIH, HRI.

2. The grievance of the petitioner raised by him through this Petition is that he is a qualified MBBS Doctor, who after completing his aforementioned professional qualification from Allama Iqbal Medical College, Lahore, joined the T.B and Chest Ward of the General Hospital, Lahore, as a House Physician on 02.01.1986. The petitioner moved an application dated 03.07.1986 for appointment against a permanent vacant position of Research Officer/Medical Officer at the Pakistan Medical

Research Council (PMRC) in the Institute of T.B and Chest Diseases of Mayo Hospital, Lahore. The petitioner was directed to appear for interview before the Chairman, PMRC, Sheikh Zayed Hospital, Lahore, vide PMRC's office memorandum No. F.5-6/86-86/Res/Admn/1358 dated 01.09.1986, which he complied with accordingly. Later on, the petitioner appeared before a Selection Committee comprising Lt. Gen. M.A.Z. Mohyidin (Chairman & Dean, Sheikh Zayed Postgraduate Medical Institute), Dr. Shahbaz Munir Raja (Honorary Director, T.B. Research Centre, K.E.Medical College, Lahore) and Dr. N.Rehan (Secretary, National Clinical Research Complex, Lahore) and secured 72 marks out of 100. The said Committee recommended the petitioner for appointment as Medical Officer (BPS-17), which was conveyed to him vide PMRC's office memorandum No. F.5-6/86-87/Res/Admn/3443 dated 13.11.1986. The said office memorandum mentioned that the petitioner's appointment was on temporary basis, however, at the end of the said letter, it was mentioned that his appointment will be on *ad hoc* basis. After his appointment, the petitioner continued to work as a Medical Officer in the PMRC's T.B. Research Centre and performed his duties. In the meanwhile, the Pakistan Medical Research Council (Service) Regulations, 1994, were promulgated and, consequently, the services of the employees of the PMRC became subject thereto and during his entire service all deductions applicable to permanent employees were made from his salaries. Further on the recommendations of the Departmental Selection Committee dated 30.11.2004, the petitioner was

placed in BPS-18 with immediate effect vide PMRC's office order bearing F.No. 3-20/2004-05/Admin/5069 dated 04.06.2005. Later on, the DPC in its meeting held on 26.08.2009 recommended the case of the petitioner along with others for promotion to BPS-18, which recommendation was also approved by the competent authority vide Ministry of Health letter No. F.11-31/2009-E-II dated 20.10.2009 and consequently the petitioner and two other officers were promoted to the posts of Senior Medical Officer/ Senior Research Officer (BPS-18) vide PMRC's office order bearing F.No. 3-20/Admin/3141 dated 28.10.2009. Thereafter the Departmental Promotion Board in its meeting held on 02.04.2013 recommended the case of the petitioner and one other officer for promotion to BPS-19, which recommendation was approved by the competent authority vide Cabinet Division letter No. 3-46/2012-Admn (H-III) dated 09.05.2013 and petitioner and aforementioned officer were promoted to the posts of Research Director (BPS-19) vide PMRC's office order bearing F.No. 3-20/2013/5442 dated 10.05.2013. Resultantly, the petitioner joined the PMRC T.B Research Centre Institute of T.B and Chest Diseases, King Edward Medical College, Lahore, on 14.05.2013 as Research Director (BPS-19), in terms of the PMRC's office order bearing PF.No. 134-RI/Admin/5639 dated 23.05.2013. The petitioner claims that although he was initially appointed on temporary basis yet he served PMRC/PHRC for a period spreading over 34-years with an unblemished service record, and throughout all the said time frame, he was treated as a regularly appointed officer, who was posted and promoted as

such and during his tenure while working as Research Director (BPS-19), he attained the age of superannuation on 05.08.2020 and his case was recommended to be processed for retirement with all benefits through a letter bearing Ref.No. 36/Pension/TBRC/8 dated 12.08.2020 issued by the Prof. Dr. M. Saqib Saeed, Honorary Principal Research Officer, PHRC T.B. Research Centre, Chairman, Pulmonology Department, KEMU, Lahore, addressing the Executive Director, Pakistan Health Research Council, Islamabad, mentioning therein that the petitioner has retired on 05.08.2020 on attaining the age of superannuation and nothing is outstanding against him and requested for issuance of his retirement order, where-after the respondent No. 7/Honorary Principal Research Officer, PHRC, T.B Research Centre, KEMU, Lahore, issued a retirement order bearing Ref.No. 36/Pension/TBRC/10 dated 26.08.2020 certifying that the petitioner retired on 05.08.2020 on reaching age of superannuation. Consequently, in pursuance of the said retirement order dated 26.08.2020, the petitioner handed over the charge of his post to the respondent No. 7. Thereafter, a sanction from PHRC was accorded for the final payment of G.P.Fund amounting to Rs. 3,229,188/- to the petitioner vide Sanction order bearing No. 8-1/2020-21/Acct/GPF/542 dated 23.10.2020 and the petitioner received his G.P.Fund but other retirement benefits were not granted. In the meanwhile, the National Institution of Health (Reorganization) Ordinance, 2020, was promulgated, which was then succeeded by the National Institution of Health (Reorganization) Act, 2021, whereby the National

Institution of Health (**'NIH'**) was reorganized as an autonomous body and under its Section 28, employees of the National Institute of Health and the Pakistan Research Council, were transferred to NIH. The NIH did not issue retirement notification instead issued impugned letter/order dated 04.06.2022 to refuse retirement benefits to the petitioner on the ground that he had been initially appointed on *adhoc* basis and should not have been promoted without his services being regularized in BPS-17; where-after the petitioner filed a representation before the Secretary, Ministry of NHR&C, Government of Pakistan, for redress of his grievance, which remained unattended, hence, the petitioner has filed this Petition for setting-aside the said refusal letter and seeks issuance of direction to the respondents to issue/release retirement benefits to the petitioner. The respondents in response have reiterated their stance that the petitioner was initially appointed on *adhoc* basis subject to his confirmation in service and had held post temporarily till regular incumbent was appointed, therefore, he could not claim benefits of retirement.

3. This is a case of peculiar circumstances as the petitioner was appointed as Medical Officer on *adhoc* basis at the PMRC, PHRC TB Research Center, King Edward Medical College, Lahore, on 11.01.1987, which department was reorganized, restructured, and renamed as PHRC through Act of 2016 and all regular employees were transferred and merged in National Institute of Health/NIH and the same procedure was applied to the petitioner. Thereafter, the petitioner was placed in BPS-18 on 04.06.2005 in furtherance of DPC held on 30.11.2004

and in the said order it was not mentioned that as to whether BS-18 was given to the petitioner on regular basis or he had been promoted temporarily or on time scale basis. Thereafter, the petitioner was promoted in BPS-18 as Senior Medical Officer on 28.10.2009 through DPC held on 25.08.2009. Subsequently, he was also promoted as Research Director in BPS-19 on 10.05.2013 after the approval of the Cabinet Division. None of the afore-referred promotion orders mention as to whether the petitioner was promoted on temporary basis or otherwise and the petitioner continued to work in BPS-19 till his age of superannuation on 05.08.2022. Despite the fact that the petitioner had been promoted on regular basis and served against regular posts nothing was ever mentioned in any order relating to his initial status as *ad hoc* employee or the fact of his services being confirmed or not. However, it is claimed that the persons promoted alongside the petitioner in BPS-18 and BPS-19 had been promoted and posted as regular employees and said treatment was also applicable to the petitioner for having been promoted and posted through same order/notification. When queried as to how long an employee could be allowed to work on *ad hoc* basis before his confirmation or removal from service, learned counsel for the respondents as well as learned Assistant Attorney General for Pakistan point out that no such time frame is fixed by the law and an employee can continue in service for the fixed time period for which he is appointed or in the alternate if no time frame is provided, if the department so desires he may continue in service as long as he is not removed by appointment of regular incumbent or he

resigns. However, it is not denied that the Regulation No. 14 of the Pakistan Medical Research Council Employees (Service) Regulations, 1994, applicable to the case of the petitioner provides for confirmation of service as under:-

“14. Confirmation:-

- 1) Subject to the availability of a permanent post, any employee shall on satisfactory completion of his probation be eligible for confirmation in his post.*
- 2) There shall be no confirmation against any temporary post.*
- 3) An employee who, during the period of his service was eligible to be confirmed in any post, retires from service before being confirmed, shall not, merely by reason of such retirement, be refused confirmation in such post or any benefit occurring therefrom.*
- 4) Confirmation of an employee in a post shall take effect from the date of occurrence of a permanent vacancy in that post or from the date of continuous officiation in such post whichever is later.”*

Regulation 14(3) supra clearly mentions that where an employee during period of his service was eligible to be confirmed in any post, retires from service before being confirmed cannot because of his retirement be refused confirmation in such post or any benefit occurring therefrom. It is not denied that the petitioner was appointed on *ad hoc* basis and continued to serve and hold various posts till attaining his age of superannuation on 05.08.2020 and in the meanwhile no steps were taken to end his temporary appointment or replace him by a regular incumbent, rather he was throughout being treated as a regular employee and had been twice promoted despite the fact that no steps were taken to regularize/confirm his services in the department. Needless to mention here that he had been promoted to higher grades through DPC held by the

department, which were affirmed by the Cabinet Division as well and he attained BPS 18 and 19 respectively, on 28.10.2009 and 10.05.2013, which imply that the respondent department for all intents and purposes was treating the petitioner as regular/confirmed employee of their department till his date of superannuation and till then he had served the respondent department for more than 34 years.

A similar matter came up for hearing before the Hon'ble Supreme Court of Pakistan in case reported as **1998 SCMR 969** (*Dr. Sher Wali Khan, Assistant Director, Health Service, Northern Areas, Gilgit versus Dr. M. Hassan Khan Amacha and 4 others*), wherein case of regularization of *ad hoc* employee in service was considered and the Supreme Court of Pakistan had held as under:-

'18. Once the Federal Public Service Commission found the appellant fit to hold the post in Grade-17 as Medical Officer in 1975, the Competent Authority could validly pass orders regularizing his service in Grade-17 with effect from September, 1975 and also pass consequential orders formally regularizing his promotion to Grade-18 with effect from 8-10-1981 i.e. the date when he had already been promoted to that grade.

19. Even if the said orders of the competent Authority regularizing the appellant's ad hoc service in Grade-17 with effect from 1975 are considered to have been passed under section 23 of the Civil Servants Act, 1973, in the peculiar facts and circumstances of this case, specially where no objection had been raised for 14 years by any other employee of the Department and even no objection had been raised by respondent No.1 when the combined seniority list of Grades-17 and 18 was issued in 1985 in which the appellant was shown in Grade-18 and the respondent No.1's name was in Grade-17, coupled with

the fact that this was a case of regularization of an appointment made between 1-1-1972 and 5-7-1977, prescribed in substituted rule 4 of the Federal Public Service Commission (Functions) Rules, 1978, such order of the competent Authority would be covered by the words "just and equitable" employed in section 23 of the Act. Additionally, it may be observed that there was no allegation on record that the appellant was favoured, in any way, by any authority in his appointment or he managed to obtain promotion on the basis of any influence or pressure. The aforesaid facts and reasons, made this an exceptional case, and despite the fact that the same technically affected respondent No. 1 the ad hoc service of the appellant having been validly regularized with effect from September, 1975, in effect seniority of respondent No.1 was not affected, he having joined service in Grade-17 much later in 1981.

As observed, this was an exceptional case and the judgments referred to hereinabove relied upon by Sh. Riazul Haq did not debar the competent authority to regularize the ad hoc service of the appellant.'

4. The case of the petitioner is also an exceptional case like the aforementioned case, where although he had been initially appointed on *ad hoc* basis but he continued in his service on different posts in the government service till the date of his superannuation, wherein he was not only appointed and promoted on regular basis against permanent posts, which appointment was even approved by the Cabinet Division, but his case was also recommended for retirement and release of its benefits on attaining age of superannuation. It means that the petitioner during his service has been treated as a regular employee and not an *ad hoc* employee for all intents and purposes. Any

defect in his appointment seems to have been cured by the Cabinet's approval of his regular promotion against a permanent post for the reason that the competent authority with the approval of the Cabinet was competent to approve the conversion of his *ad hoc* appointment to regular appointment. It is not the case of the respondents that petitioner himself maneuvered his appointment or someone in the department favoured him or that he continued in service due to any influence or pressure without any just cause, rather it appears that the fact of his initial appointment on *ad hoc* basis was lost in oblivion due to various changes in situation including the change of status of respondents side due to reorganization, restructuring and renaming of the respondent-department as per facts narrated above. The petitioner himself has also appears to have suffered on account of inaction of the respondents to process his case for regularization of his *ad hoc* service by referring the matter to the FPSC or any other competent forum or authority for consideration at the proper time, where he would have had a fair opportunity for seeking regular appointment and in that case his *ad hoc* appointment if resulting in regularization of his services although may not count in seniority but the same would be counted for calculation of retirement benefits. It is important to note here that even if a person is not directly appointed in a department and is serving the same on deputation, his services may be absorbed in the department in which he is working if Service Rules provide for absorption and in that case the deputationist counts his seniority from the date of absorption i.e. regular appointment in cadre. Reference is made to **2009 PLC**

(C.S.) 83 Islamabad (*Dr. Jamal Zafar versus Dr. Nighat Bilal and 2 others*).

5. The question of *ad hoc* appointment has surfaced for the first time when matter was placed before the NIH for confirmation of petitioner's retirement and payment of retirement benefits and had not been raised at any previous stage. In a situation where the defect in initial appointment had been raised for the first time after a long period in case reported as **1996 SCMR 1350** (*Director, Social Welfare, N.-W.F.P., Peshawar versus Sadullah Khan*), where services of civil servant were terminated on the ground that besides being irregular, his appointment was violative of Rule 10(2), North-West Frontier Province Civil Servants (Appointment, Promotion and Transfer) Rules, 1989, it was held that although civil servant's appointment was temporary, yet it had been made by Competent Authority and the court reinstated him in service from the date of termination of his service by observing that Authority being responsible for making irregular appointment on alleged purely temporary basis, had subsequently turned around and terminated civil servant's service, which was utterly untenable for the reason that Authority did not claim that civil servant lacked qualifications for the post. The Authority having itself appointed civil servant on temporary basis could not be allowed to take benefit of its own lapses in order to terminate services of civil servant merely because it had itself committed irregularity in violating procedure governing appointment. On the basis of the principles laid down in the aforementioned judgment, in the present case, the respondents after having promoted and appointed the petitioner against permanent post on

regular basis in higher grade, which was affirmed by the Cabinet Division, and on attaining the age of superannuation after rendering almost 34-years' service at his credit recommending his case for issuing retirement Notification and release of corresponding retirement/pensionary benefits are estopped by conduct and precluded from claiming that the *ad hoc* appointment of the petitioner had not been regularized. It is important to note here that in judgment reported as **2022 SCMR 77** (*Secretary, Ministry of Finance, Islamabad and others Vs. Tayyaba Halim Subhani and others*) while considering the inclusion of period of *ad hoc* service in calculation of pensionary benefits, observed that although employment of the respondents was not permanent within the meaning of Article 361 of Civil Service Regulations, the Establishment under which they were working was permanent and the fact that their rendered services for years showed that they were not employed on temporary basis as a stop gap arrangement for short period of time and held that services rendered by them on an *ad hoc* basis could be counted towards their pay and pension. It was further held that where employees were continuously employed for long period of time running into years and their contracts were renewed/extended from time-to-time, through artificial breaks would not convert their employments into a stop gap arrangement. Furthermore, in judgment reported as **2024 PLC (C.S) 382 Sindh** (*Imtiaz Ahmed Vs. Federation of Pakistan through Secretary Defence and others*), it has been held that where continuous temporary or officiating service is immediately followed by confirmation, the said period of service rendered by the petitioner on daily wages has

to be considered as regular service and due pensionary benefits would be available to the petitioner.

6. Learned counsel for the respondents has raised the question of jurisdiction of this Court to entertain the dispute in hand while referring to Section 32 of the National Institute of Health (Reorganization) Act, 2021, by stating that only civil court has exclusive jurisdiction to entertain the dispute. In response, learned counsel for the petitioner points out that the said Act was promulgated on 11th August, 2021, whereas the petitioner retired from service on 05.08.2020 prior to its promulgation, therefore, the said Act is not applicable to the petitioner. Be that as it may, although the said Act cannot be applied with retrospective effect, it is immaterial in the instant case despite objection of the learned counsel for the respondents that retirement notification was issued in the year 2022 retiring the petitioner with retrospective effect on 05.08.2020 and by then the said Act had been promulgated for the reason that the petitioner after superannuation is seeking his retirement benefits and all the facts in the present case are admitted and no findings of fact are required to be recorded by leading evidence before the civil court. Prima-facie, the petitioner has been treated throughout his service as regular employee, therefore, the impugned letter/Order dated 04.06.2022 communicated by the Section Officer (Admn-III), on behalf of Secretary to the Ministry of National Health Services, Regulations & Coordination, Government of Pakistan, Islamabad, refusing to issue retirement notification of the petitioner is **set-aside** by declaring the same to have been issued without lawful authority and of no legal effect with further observation that the

services of the petitioner shall be deemed to have been regularized and his case for retirement/pensionary benefits shall be processed, accordingly. With these observations, the instant constitutional petition is **allowed**.

(Muzamil Akhtar Shabir)
Judge

Zeeshan Khan

APPROVED FOR REPORTING

Judge